

Message History (3)

On 5/14/2026 4:23:02 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012663-050426

Body:

RE: PUBLIC RECORDS REQUEST of May 04, 2026, **Reference # W012663-050426**

Dear Brian C,

The City received the following records request on May 04, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

SMPD's August 2014 MOU with the Northern California Regional Intelligence Center (NCRIC) (produced under W012376-032026) contains two operative provisions:

§ 6 (Information Ownership and Release): "Member Agencies remain the official custodian of all information contributed to the NCRIC-DSP. To the fullest extent permissible by law, all requests for information, California Public Records Act, or Freedom of Information Act, will be referred to the Member Agency that is the owner of the requested data, and the Member Agency that is the owner of the requested data will be responsible for responding to the request."

§ 9 (Connecting with other data sources and analysis platforms): "Member Agencies grant authority to the NCRIC to execute information sharing agreements with new Member Agencies and to incorporate new information sharing systems into the NCRIC-DSP. Such agreements will not require further review or approval by member agencies."

NCRIC's published Flock transparency portal (captured 2026-04-25) lists 319 outbound recipients, including three private institutions:

- University of the Pacific (CA) — confirmed in writing by UOP's Chief of Police on 2026-03-11 to be a private institution not subject to CPRA.*
- Stanford University CA PD — a department within Stanford University, a private 501(c)(3) institution.*
- University of San Francisco CA PD — a department within USF, a private 501(c)(3) institution.*

Scope of records

This request reaches records held by Flock Safety, NCRIC, or any other contractor or partner acting as

SMPD's agent on SMPD's data, regardless of which server they physically reside on. Such records are "writings ... prepared, owned, used, or retained" by SMPD within the meaning of Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608. Four SMPD-sourced instruments confirm this directly:

1. Flock Master Services Agreement § 4.1 — SMPD retains ownership of data processed by Flock on SMPD's behalf.

2. SMPD Policy 463 (published Dec 12, 2025) — § 463.5 makes the Field Operations Captain "responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data," referring to "ALPR information gathered and retained by this Department."

3. SMPD SOP 205 (published Nov 10, 2025) § 205.5.1 — audit records "maintained by Amazon Web Services" (for Flock) or by NCRIC are "available for review and audit by SMPD." No responsive records.

4. SMPD–NCRIC MOU § 6 — SMPD is the official custodian of all SMPD information contributed to NCRIC-DSP and is responsible for responding to PRA requests about that information. Under the MOU, NCRIC refers such requests back to SMPD. No responsive records.

Records requested

1. ALPR data SMPD-originated that was disclosed by NCRIC to University of the Pacific, Stanford University, or University of San Francisco (collectively, the "Named Recipients") — plate reads, detections, hotlist hit notifications, query results, or any other ALPR information (as defined by Civil Code § 1798.90.5(c)) transmitted to a Named Recipient through any NCRIC system or platform, including bulk exports, canned reports, data feeds, or files. For this item, the temporal scope is from November 2022 (commencement of SMPD's Flock deployment, per INV-10888) through the date of production. No responsive records.

2. Audit-log entries memorializing each Named Recipient's access to SMPD-originated data via NCRIC systems (NCRIC-DSP, Astrometrics, Flock, or otherwise), including: (a) search queries Named Recipient user accounts executed against SMPD-originated data; (b) plate reads or results returned in response to those queries; (c) timestamps for each query and response; and (d) the Named Recipient user account identifiers associated with each query. For this item, the temporal scope is from November 2022 through the date of production.

The requested records reflect search activity conducted by law enforcement agencies in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600

3. Any documentation NCRIC provided to a Named Recipient describing the scope of that recipient's access to SMPD-originated data — camera lists, coverage maps, retention-window notices, hotlist or alert-rule descriptions. No temporal floor; this item covers any such documentation in existence. No responsive

records.

4. Any sharing agreement, data-use agreement, or executed instrument between NCRIC and a Named Recipient governing that recipient's access to SMPD-originated ALPR data, executed under the authority granted by SMPD in MOU § 9. No temporal floor; this item covers the agreements as currently in effect and any predecessor versions. No responsive records.

5. Any records reflecting SMPD's awareness of NCRIC's onward disclosures to the Named Recipients — including any review of NCRIC's transparency portal, any communication with NCRIC about any Named Recipient's status or access, or any analysis of whether onward disclosure to those institutions is consistent with § 1798.90.55(b). No temporal floor; this item covers all such records. No responsive records.

6. ALPR data SMPD-originated that SMPD transmitted, contributed, or otherwise made available to NCRIC (whether via NCRIC-DSP, Astrometrics, the Flock network, or any other channel), and any SMPD-side audit-log entries memorializing those contributions — including channel, timestamp, and data volume. For this item, the temporal scope is from November 2022 (commencement of SMPD's Flock deployment, per INV-10888) through the date of production. This item is independently responsive: where items 1 and 2 cannot be produced because responsive records reside in NCRIC systems, SMPD's records of its own contributions to NCRIC, combined with NCRIC's published transparency portal listing UOP, Stanford, and USF as outbound recipients, establish the SMPD-to-Named-Recipient chain.

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Anticipated exemption issues

Civil Code § 1798.90.55(b) (via Gov. Code § 7927.705). The statute's sharing restriction operates against a public agency's disclosure of ALPR information to non-public entities. The records requested here document onward disclosures that have already occurred to recipients (UOP, Stanford, USF) that are not § 1798.90.5(f) public agencies. Information NCRIC provided to SMPD, or maintained internally by NCRIC, does not implicate that provision's sharing restriction.

Gov. Code § 7923.600 (investigation records). § 7923.600 exempts records of complaints to, or investigations conducted by, a state or local police agency, and investigatory files compiled by such an agency. Two features of the present situation sit outside that scope: (a) the records requested are not investigative files compiled for a specific SMPD investigation, but bulk ALPR data SMPD made broadly accessible to NCRIC's outbound network for undefined use; and (b) any investigative use by the Named Recipients is investigation by private universities — not by a state or local police agency within § 7923.600's text.

Records held by NCRIC or Flock Safety. Per MOU § 6, SMPD remains the official custodian of SMPD-contributed data residing in NCRIC systems and is responsible for responding to PRA requests about that data. Per Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, records of

SMPD-originated data held by Flock Safety as SMPD's contractor are SMPD records regardless of physical location.

Cal. Const. Art. I § 1 / third-party privacy. If plate data implicating third-party privacy appears in the produced records, the appropriate redaction baseline is the one applied when the data was originally disclosed to NCRIC and onward to the Named Recipients. Whatever redactions were applied (or were not applied) at that disclosure reflect SMPD's operative privacy judgment on that data.

Segregability (§ 7922.525(b)). Items 3 through 5 (scope documentation, agreements, awareness records) concern the fact and terms of the sharing arrangement rather than underlying plate data, and should be producible with minimal or no redaction regardless of how Items 1 and 2 are handled.

If any portion is denied, please:

- 1. provide specific exemption citations per Gov. Code § 7922.540;***
- 2. identify the withheld record type and volume;***
- 3. indicate whether the denial rests on a claim that the records are held by NCRIC or Flock Safety rather than SMPD; and***
- 4. if the denial invokes Civil Code § 1798.90.55(b) or any other rationale treating the records as protected "ALPR information" restricted from disclosure to non-public entities, state whether SMPD considers NCRIC's onward disclosure of SMPD-originated ALPR data to UOP, Stanford, and USF — non-public institutions — to have been lawful under that provision, and identify the legal authority supporting that position.***

Thank you.

The City has completed a good faith and diligent search to your request and we now consider this record request W012663-050426 closed. If you have any questions, or would like to submit a new request for records, please contact the City.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/4/2026 12:21:05 AM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/4/2026 and given the reference number **W012663-050426** for tracking purposes.

Record(s) Requested: Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

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Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/4/2026 12:21:05 AM, Brian C wrote:

Request Created on Public Portal